

TENTATIVE RULINGS

DEPARTMENT C33

Judge Sandy N. Leal

July 23, 2026 at 10:00 AM

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's website for rules and procedures for court reporters obtained by the Parties.

Tentative rulings: The Court endeavors to post tentative rulings on the Court's website in the morning, prior to the hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the Department for tentative rulings if tentative rulings have not been posted. The Court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5233. Please do not call the Department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.*, 205 Cal.App.4th 436, 442, fn. 1 (2012.))

Appearances: Department C33 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C33 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California.

All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time. All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at <https://www.occourts.org/media-relations/aci.html>. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this Department by either coming to the Department at the designated hearing time or contacting the Courtroom Clerk at (657) 622-5233 to obtain login information. For remote appearances by the media or public, please contact the Courtroom Clerk 24 hours in advance so as not to interrupt the hearings.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
3	24-01420130 <i>Carr vs. Siefkin</i>	Motion to Compel Deposition (Oral or Written) The motion of plaintiff Natalie Carr for an order compelling non-party witness Trisha Monninger to appear for questioning and produce documents as specified in the deposition notice served on the defendant on September 15, 2025 is DENIED. Although no opposition to the motion has been filed, the motion presents two procedural issues that may prevent the Court from granting it. First, as recognized by the plaintiff in the moving papers, a motion to compel the deposition of a non-party witness must be personally served on that non-party witness per CRC 3.1346. (“A written notice and all moving papers supporting a motion to compel an answer to a deposition question or to compel production of a document or tangible thing from a nonparty deponent must be personally served on the nonparty deponent unless the nonparty deponent agrees to accept service by mail or electronic service at an address or electronic service address specified on the deposition record.”) Plaintiff represents in the motion that she was serving the non-party witness with the moving papers by mail and email and would also personally serve her with them as provided in Rule 3.1346. She states that she intended to file a proof of service showing personal service of the moving papers on witness after such service was made, but the Court’s file does not show that plaintiff filed the proof of service. Second, trial in this matter is scheduled for August 17, 2026, which is less than 30 days after the hearing date of the motion and, under Code Civ. Proc. § 2024.020(a), “any party shall be entitled as a matter of right to complete discovery proceedings on or before the 30th day, and to have motions concerning discovery heard on or before the 15th day, before the date initially set for the trial of the action.” Thus, the instant motion is being heard after the discovery cut-off date, and the Court denied plaintiff’s ex parte application to advance the hearing to a date before the discovery cut-off date. (See minute order of March 3, 2026, corrected nunc pro tunc by second minute order of March 3, 2026, ROAs 77 and 80.)
4	23-01327019 <i>Chavez vs. York Enterprises South, Inc.</i>	Motion for Attorney Fees Plaintiffs’ Motion for Attorney Fees is GRANTED in the amount of \$19,596.60. Plaintiffs seek an award of \$23,789.40, comprised of \$13,976.00 in fees, \$5,620.60 in costs, and a lodestar multiplier of 1.30 in the amount of \$4,192.80. There is no dispute Plaintiffs are entitled to fees and costs, but Defendants contend the fees are excessive. Defendants suggest \$5,444.75 would be appropriate.

		Plaintiffs bear the burden of showing that the hourly attorney rate sought is reasonable. (<i>Christian Research Institute v. Alnor</i> (2008) 165 Cal.App.4th 1315, 1320.) In challenges to the reasonableness of the number of hours billed, “it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence.” (<i>Premier Med. Mgmt. Sys., Inc. v. Cal.Ins. Guarantee Ass’n</i> (2008) 163 Cal.App.4th 550, 564.) “General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.” (<i>Id.</i>) Plaintiffs’ counsel billed for 33.5 hours of work, inclusive of the time spent on the present motion, reply and attending the hearing, at rates between \$295-575/hour for attorneys and \$145/hour for paralegals. (Kirnos Decl., Ex. A at p. 7.) Given that this case was ongoing for almost 2.5 years before it settled, which included written discovery, four depositions and two mediations, the court finds the hours Plaintiffs spent litigating this matter are reasonable. The court also finds the hourly rates are reasonable for this type of litigation in the local legal community. The court declines to award a multiplier because Plaintiffs have not shown this case was particularly novel or complex. Defendants contend Plaintiffs’ costs are unsubstantiated and unreasonable because Plaintiffs failed to attach supporting documentation. However, Plaintiffs filed a verified memorandum of costs on 12/5/25 (ROA 79), which is also attached to Plaintiffs’ supporting declaration (Kirnos Decl., Ex. B). The memorandum of costs appears to include proper costs for filing, jury fees, deposition costs, service of process, and other litigation expenses. Where items appear on their face to be proper charges, the verified memorandum of costs is prima facie evidence of their propriety, and the burden is on the party opposing the costs to show they were not reasonable or necessary. (<i>Jones v. Dumrichob</i> (1998) 63 Cal.App.4th 1258, 1266.) Defendant fails to do so. Defendant also failed to file a motion to strike or tax costs; the deadline to do so has long since passed. (See Cal. Rules of Court, rule 3.1700(b)(1).) Therefore, the request for costs in the amount of \$5,620.60 is granted. The motion is granted. Plaintiff shall recover fees in the amount of \$13,976.00 and costs in the amount of \$5,620.60.
9	25-01519966 Riddick vs. Hanson	Motion to Quash Defendant Joseph Hanson’s Motion to Quash Service of Summons is GRANTED. “If a copy of the summons and complaint cannot with reasonable diligence be personally delivered to the person to be served, as specified in Section 416.60, 416.70, 416.80, or 416.90, a summons may be served by leaving a copy of the summons and complaint at the person's dwelling house, usual place of abode, usual place of business, or usual

		mailing address other than a United States Postal Service post office box, in the presence of a competent member of the household or a person apparently in charge of their office, place of business, or usual mailing address other than a United States Postal Service post office box, at least 18 years of age, who shall be informed of the contents thereof, and by thereafter mailing a copy of the summons and of the complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left. Service of a summons in this manner is deemed complete on the 10th day after the mailing.” (Code Civ. Proc., § 415.20(b).) “[T]he burden is upon the plaintiff to show reasonable diligence to effect personal service and each case must be judged upon its own facts.” (<i>Evartt v. Superior Court</i> (1979) 89 Cal.App.3d 795, 801.) Here, Plaintiff submits a proof a service declaration from Steven Hurtado who attests to serving a copy of the summons and complaint by “depositing the sealed envelope with the United States Postal Service with the postage fully prepaid.” (ROA 12, ¶ 3(a).) Plaintiff has failed to satisfy his burden of showing reasonable diligence in attempting personal service prior to using substitute service. Thus, Defendant’s Motion is granted on this ground.
10	24-01397948 <i>Sanchez vs. Namhy</i>	Motion for Discovery Motion to Compel Further Responses to Request for Production The Court CONTINUES the hearing on Plaintiff’s motion to compel further responses to requests for production of documents, set one, and set an Order to Show Cause re Why Sanctions Pursuant to Code of Civil Proedure section 177.5 Should Not Issue for Plaintiff Cristina Martinez Sanchez and Defendant Vishramal Gunasekara’s Failure to File a Joint Status Report in Compliance with the Court’s 5/21/26 Order. The OSC is scheduled for _____ at 10:00am in Department C33. Additionally, the hearing on Plaintiff’s motion to compel further responses to requests for production of documents, set one, is CONTINUED to the same date and time as the order to show cause hearing re sanctions. This matter was originally set for hearing on 5/21/26. The Court continued the matter to 7/23/26, finding the parties had not engaged in sufficient attempts to meet and confer. The Court ordered the parties/counsel to: (1) engage in additional attempts to meet and confer in person, telephonically, or over remote videoconferences (not email). If Defendant agrees to serve further responses, Defendant shall serve verified further responses no later than nine court days before the hearing; and

		(2) file a joint status report, no longer than five pages, indicating whether court intervention remains the only option to resolve this discovery dispute and, if so, which responses remain at issue, no later than five court days before the hearing. The Court stated: “Failure to comply with this order may result in sanctions against the non-compliant party and/or their counsel pursuant to Code of Civil Procedure section 177.5.” Both parties did not comply with the Court’s order to submit a joint status report. Accordingly, the hearing is CONTINUED to _____ at 10:00am in Department C33, to allow the parties/counsel to meet and confer as previously ordered; i.e., the parties/counsel are to meet and confer in person, telephonically or over remove teleconference (NOT EMIAL OR LETTER). If Defendant agrees to serve further responses, Defendant shall serve verified further responses no later than nine court days before the hearing. If after meeting and conferring further and in good faith, items remain in dispute, the parties/counsel are to file a JOINT STATUS REPORT identifying the items remaining in dispute and the parties’ positions no later than five court days before the hearing. If the parties/counsel fail to meet and confer as ordered, the Court will consider imposition of further sanctions pursuant to Code of Civil Procedure section 177.5, not only for disobedience to the Court’s 5/21/26 order but for this order as well. Clerk to give notice
11	25-01458863 <i>Satin vs. HH Law Firm</i>	1) Motion to Compel Deposition (Oral or Written) 2) Motion to Compel Further Responses to Special Interrogatories 3) Motion to Compel Production 4) Motion to Compel Production <u>Motion #1</u> The motion of plaintiff Ken Satin for an order compelling defendant HH Law Firm to serve a further response to the first set of special interrogatories is CONTINUED to _____, 2026 at 10:00 a.m. in Department C33. Counsel for both parties are directed to meet and confer “either in person, by telephone, or by videoconference” and specifically discuss the set of special interrogatories and the answers and objections. After that session, counsel for both parties are to submit a joint statement detailing the efforts they engaged in and setting forth the items still in dispute. This joint statement is to be filed no later than 10 days before the continued hearing. <u>Discussion.</u> Plaintiff Ken Satin moves under Code Civ. Proc. § 2030.300(a) for an order compelling defendant HH Law Firm to serve a further response without objection to the first set of special interrogatories. Although the caption of the motion references a request

for a monetary sanction, the notice of motion does not contain such a request, which is required for sanctions to be awarded. See Code Civ. Proc. § 2023.040. Defendant opposes the motion and asks for a monetary sanction against plaintiff.

Like the other separate statements filed by moving plaintiff, the separate statement filed in support of this motion (ROA 112) is generically labeled as a “separate statement of items in dispute in support of motion to compel defendant HH Law Firm to provide further responses to discovery requests.” It also contains a title on the first page referring form interrogatories, rather than special interrogatories. Nevertheless, it is 119 pages long and indicates that plaintiff seeks further responses to special interrogatories 1 through 25, which may be all special interrogatories in the set. (Defendant’s responsive separate statement (ROA 179) is 101 pages long.)

A motion to compel a further response to a set of special interrogatories must be accompanied by a meet and confer declaration under Code Civ. Proc. § 2016.040. Code Civ. Proc. § 2030.310(b). “A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.” Code Civ. Proc. § 2016.040(a).

Plaintiff submitted the declaration of attorney Alex DiBona in support of this motion and the three other discovery motions filed on the same day. (ROA 129.) In this declaration, attorney DiBona gives the following one-paragraph statement regarding his meet and confer efforts:

I have met and conferred many times through electronic mail and telephonically with Defendant’s Counsel of Record, Fadi Rasheed, most recently Defendant’s counsel of record [sic] promised substantive responses to the discovery and that he would send a proposed protective order. However, as of the date of the drafting of this declaration, they have not done so. Attached hereto as Exhibit 9 is a true and correct copy of the meet and confer correspondence.

This declaration hardly complies with the requirements of sections 2016.040 and 2030.300. Among other things, section 2016.040 specifies that meet and confer efforts must be made in person, by telephone, or by videoconference. Thus, sending email correspondence does not suffice – not even if the correspondence is “detailed.” Also, the declaration does not show any efforts by Attorney DiBona to resolve issues specific to this motion, i.e., issues relating to the answers or objections to each of the 25 special interrogatories.

Counsel for the parties may well resolve the issues if they were directed to meet and confer “either in person, by telephone, or by videoconference” and specifically discuss the special interrogatories and the answers and objections as required by sections 2016.040 and 2030.300.

Motion #2

The motion of plaintiff Ken Satin for an order compelling defendant HH Law Firm to serve a further response to the first set of requests for production is CONTINUED to _____, 2026 at 10:00 a.m. in Department C33.

Counsel for both parties are directed to meet and confer “either in person, by telephone, or by videoconference” and specifically discuss the set of requests for production and the answers and objections. After that session, counsel for both parties are to submit a joint statement detailing the efforts they engaged in and setting forth the items still in dispute. This joint statement is to be filed no later than 10 days before the continued hearing.

Discussion. Plaintiff Ken Satin moves under Code Civ. Proc. § 2031.310(a) for an order compelling defendant HH Law Firm to serve a further response without objection to the first set of requests for production. Defendant opposes the motion.

A motion to compel a further response to a set of requests for production must both: (1) set forth specific facts showing good cause justifying the discovery sought by the demand; and (2) be accompanied by a meet and confer declaration under Code Civ. Proc. § 2016.040. Code Civ. Proc. § 2031.310(b).

This motion is supported by the same declaration by Attorney Alex DiBona that was submitted in support of motion #1, which was the motion to compel defendant HH Law Firm to serve a further response to the first set of special interrogatories. As discussed there, the declaration did not come close to meeting the requirements of section 2016.040.

Motion #3

The motion of plaintiff Ken Satin for an order compelling defendant Hani Habbas to serve a further response to the first set of requests for production is CONTINUED to _____, 2026 at 10:00 a.m. in Department C33.

Counsel for both parties are directed to meet and confer “either in person, by telephone, or by videoconference” and specifically discuss the set of requests for production and the answers and objections. After that session, counsel for both parties are to submit a joint statement detailing the efforts they engaged in and setting forth the items still in dispute. This joint statement is to be filed no later than 10 days before the continued hearing.

Discussion. Plaintiff Ken Satin moves under Code Civ. Proc. § 2031.310(a) for an order compelling defendant Hani Habbas to serve a further response without objection to the first set of requests for production. Defendant opposes the motion.

A motion to compel a further response to a set of requests for production must both: (1) set forth specific facts showing good cause justifying the discovery sought by the demand; and (2) be accompanied by a meet and confer declaration under Code Civ. Proc. § 2016.040. Code Civ. Proc. § 2031.310(b).

This motion is supported by the same declaration by Attorney Alex DiBona that was submitted in support of motion #1, which was the motion to compel defendant HH Law Firm to serve a further response to the first set of special interrogatories. As discussed there, the declaration did not come close to meeting the requirements of section 2016.040.

Motion #4

The motion of defendants HH Law Firm and Hani Habbas for an order compelling the deposition of plaintiff Ken Satin and imposing a monetary sanction of \$4275 against plaintiffs Ken Satin and Advocate Law Firm, P.C., is DENIED. However, counsel for the parties are DIRECTED to meet and confer about deposition dates and determine a mutually convenient date for the deposition that is within 25 days of the hearing.

Discussion. Defendants move under Code Civ. Proc. § 1987.1 for an order compelling the deposition of plaintiff Satin. Defendants also move under Code Civ. Proc. §§ 2025.450(g)(1) and 2023.030 for a monetary sanction of \$4275 against both plaintiffs. Plaintiffs oppose the motion, contending that they have provided dates for the deposition, which moots the motion. However, by plaintiffs' own admission, the proposed dates for the deposition are within 45 days of the hearing.

As noted, the authority cited for the motion is Code Civ. Proc. § 1987.1. That Code section relates to quashing or compelling compliance with subpoenas served on a witness and defendants did not serve plaintiffs with a subpoena for the deposition of plaintiff Satin – they served notices for his deposition, which were appropriate given his standing as a party to the action.

Nevertheless, “[t]he service of a deposition notice under [Code Civ. Proc. §] 2025.240 is effective to require any deponent who is a party to the action or an officer, director, managing agent, or employee of a party to attend and to testify, as well as to produce any document, electronically stored information, or tangible thing for inspection and copying.” Code Civ. Proc. § 2025.280(a). Thus, by simply serving the deposition notices, plaintiff Satin was obligated to appear for deposition, notwithstanding the objections he served, which apparently related to the dates noticed for the deposition.

Under subdivision (a) of Code Civ. Proc. § 2025.450, “[i]f, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any

		document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.” Under subdivision (b) of section 2025.450, the motion must: (1) set forth specific facts showing good cause justifying the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice; and (2) be accompanied by a meet and confer declaration under Code Civ. Proc. § 2016.040, or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance. Here, plaintiff Satin has not refused to appear for deposition and defendants have not taken a certificate of non-appearance for him. Counsel for the parties have simply disagreed about the dates for the deposition and the sequence of discovery. Plaintiffs contend that the motion is moot because their counsel has provided dates for the deposition that are within 45 days of the hearing. This is not good enough. Despite plaintiffs’ insistence that the deposition should be taken after defendants serve their written responses to discovery, the Code provides that “[e]xcept as otherwise provided by a rule of the Judicial Council, a local court rule, or a local uniform written policy, the methods of discovery may be used in any sequence, and the fact that a party is conducting discovery, whether by deposition or another method, shall not operate to delay the discovery of any other party.” Thus, while the Court cannot grant the motion and compel the deposition and impose sanctions, counsel should resolve the dispute amicably.
12	25-01463695 <i>Sobhani vs. Stater Bros. Markets</i>	Motion for Summary Judgment and/or Adjudication Defendant Stater Bros. Markets’ Motion for Summary Judgment is GRANTED. “In order to establish liability on a negligence theory, a plaintiff must prove duty, breach, causation and damages. [¶] A store owner exercises ordinary care by making reasonable inspections of the portions of the premises open to customers, and the care required is commensurate with the risks involved.” (<i>Ortega v. Kmart Corp.</i> (2001) 26 Cal.4th 1200, 1205 [cleaned up].) “The elements of a cause of action for premises liability are the same as those for negligence.” (<i>Castellon v. U.S. Bancorp</i> (2013) 220 Cal.App.4th 994, 998.) Defendant has satisfied its burden of disproving the element of duty. Defendant submits the Reciprocal Easement and Operation Agreement (the Agreement). The Agreement provides: “the Operator shall maintain the Common Area of the Shopping Center in accordance with the

		requirements of Subparagraph A above. (Ex. A, § 6.1.) The Agreement defines “Operator” as “the Person designated from time to time by the Consenting Parties to maintain and operate the Common Area of the Shopping Center.” (Ex. A, § 1.1.) “The Consenting Parties hereby designate Developer as the initial Operator, and Developer accepts such appointment.” (Ex. A, § 1.1.) Home Depot U.S.A., Inc is the Developer within the Agreement. (Ex. A, p. 1.) The common areas are “areas of the Shopping Center which are not actually covered by (i) a building; (ii) appurtenances thereto” (Ex. A, § 1.1.) Thus, Defendant has demonstrated Home Depot is the party responsible for the common areas, including the parking lots where Plaintiff claims the incident occurred. Therefore, Defendant has met its burden of showing it owed no duty to Plaintiff in maintaining the area where Plaintiff fell. Thus, the burden shifts to Plaintiff to show an issue of material fact. However, Plaintiff did not oppose the motion and, thus, have not met his burden. Accordingly, Defendant’s Motion for Summary Judgment is granted.
13	25-01513186 <i>Virtual Film School, Inc. vs. EON Reality, Inc.</i>	Motion – Other The Motion for an Undertaking by defendants EON Realty, Inc., Dan Lejerskr, 3D Adda Pte Ltd., and Sovereign Trust International, Ltd. is CONTINUED to _____. Defendants move for an order requiring Plaintiff Virtual Film School, Inc. to post a bond of \$50,000 pursuant to Code of Civil Procedure, section 1030. The purpose of section 1030 “is to enable a California resident sued by an out-of-state resident to secure costs in light of the difficulty of enforcing a judgment for costs against a person who is not within the court's jurisdiction.” (<i>Alshafie v. Lallande</i> (2009) 171 Cal.App.4th 421, 428 [cleaned up].) To prevail on the motion, a defendant must show: (1) the plaintiff resides out-of-state or is a foreign corporation; and (2) there is a “reasonable possibility” the moving defendant will prevail in the action. (Code Civ. Proc., § 1030, subd. (a).) Defendants argue Plaintiff is a foreign corporation because the FAC alleges Plaintiff is a Delaware corporation doing business in California. (See FAC, ¶ 1.) Defendants support this fact by providing a copy of Plaintiff’s filing with the California Secretary of State, dated 5/20/22, showing it is an “Out-of-State Stock Corporation”. (Parvaneh Decl., ¶ 2, Ex. 3.) Plaintiff argues the motion should be continued or denied without prejudice so the Court can evaluate its corporate status at the time of the hearing. Plaintiff states it has always maintained its principal business location in California, its Founder and CEO has resided in California for the entirety of Plaintiff’s corporate existence and formed as a Delaware corporation to effectuate investment in the company. (Chindamo Decl., ¶¶ 4-6.) In addition, Plaintiff explains the steps it has taken to convert

		from a Delaware corporation to a California corporation. (Owens Decl., ¶¶ 3-8.) Plaintiff expects the conversion to be finalized by or around the time of the July 23, 2026 hearing. (Owens Decl., ¶¶ 9-10.) Defendants argue that waiting until the eve of the hearing to re-domicile in California is a flagrant attempt to moot the motion and subvert the posting of a bond. However, Defendants do not cite any legal authority that prohibits a foreign corporation from converting to a California corporation in response to a motion to post a bond. The Court finds no reason to ignore Plaintiff's imminent conversion. Doing so would not further the purpose of the statute and would be a waste of judicial resources. Plaintiff is ORDERED to file proof of the finalized conversion from a Delaware corporation to a California corporation no later than five court days before the hearing.
14	24-01431161 <i>Zamudio vs. Cool Breeze Trucking Inc</i>	1) Demurrer to Amended Complaint 2) Motion for Discovery 3) Motion to Compel Deposition (Oral or Written) 4) Motion to Compel Deposition (Oral or Written) <u>Demurrer</u> Defendant Cool Breeze Trucking, Inc.'s Demurrer is OVERRULED. Defendant's demurrer is procedurally defective. It fails to contain a notice. Thus, it violations Code Civil Procedure section 1010 and California Rules of Court rule 3.1320. <u>Motion to Compel – Covarrubias</u> Plaintiff Jorge Zamudio's Motion to Compel Deposition Answers of Defendant Diana Covarrubias is GRANTED. The parties are ordered to meet and confer to select a date within 60 days of this order to complete the deposition. Defendant is ordered to pay \$2,851.31 in sanctions within 20 days of this order. "If a deponent fails to answer any question or to produce any document, electronically stored information, or tangible thing under the deponent's control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the court for an order compelling that answer or production." (Code Civ. Proc., § 2025.480(a).) Here, Covarrubias failed to answer questions by terminating her deposition before Plaintiff's counsel had finished asking questions. Thus, Covarrubias is compelled to attend a second deposition session to answer counsel's remaining questions. Sanctions are mandatory for failing to answer questions at a deposition. (Code Civ. Proc., § 2025.480(j).)

Motion to Compel – Vasquez

Plaintiff Jorge Zamudio’s Motion to Compel the Deposition of Defendant Alex Vasquez is GRANTED.

The parties are ordered to meet and confer to select a date within 60 days of this order to complete the deposition.

Defendant is ordered to pay \$1,730 in sanctions within 20 days of this order.

“If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice. (Code Civ. Proc., § 2025.450.) Here, Vasquez failed to appear for his deposition without serving a valid objection. Thus, Vasquez is compelled to attend his deposition.

Sanctions are mandatory for failing to appear for a deposition. (Code Civ. Proc., § 2025.450(g)(1).)

Motion to Permit Financial Discovery

Plaintiff Jorge Zamudio’s Motion to Permit Financial Discovery is DENIED.

“A trial court considering a motion to permit discovery of a defendant's financial condition must weigh the evidence submitted in support of and in opposition to the motion and determine whether the plaintiff has established a “substantial probability.’ ” (*Kerner v. Superior Court* (2012) 206 Cal.App.4th 84, 120.) Section 3294, subdivision (c) defines malice, oppression and fraud as follows: “(1) ‘Malice’ means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others. [¶] (2) ‘Oppression’ means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights. [¶] (3) ‘Fraud’ means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.”

Plaintiff’s evidence of malice or oppression is insufficient to support a punitive damages award. Plaintiff bases his punitive damages request on “(1) Defendants knowingly re-labeled CFRA-excused absences as ‘unexcused,’ then discharged Plaintiff one day after he requested a short

		extension—because he requested that extension [sic]; (2) Covarrubias confessed no knowledge of CFRA, no research, and no review of the mandatory poster [sic]; (3) ownership knew of Plaintiff’s complaints, the PAGA notice, and his contemplation of legal action; they called him a ‘backstabber,’ stripped promised benefits, and then fired him [sic]; and (4) the owners made and executed the decision; Covarrubias authored the termination letter; she is responsible for legal compliance.” (Motion, p. 12.) However, a review of the authorities finding sufficient facts to base a punitive damages award in the employment context reveals a higher level of animus than standard retaliation as alleged here. In <i>Commodore Home Systems, Inc. v. Superior Court</i> (1982) 32 Cal.3d 211 and <i>Alcorn v. Anbro Engineering, Inc.</i> (1970) 2 Cal.3d 493, the court ruled racial discrimination was sufficient and in <i>Tameny v. Atlantic Richfield Co.</i> (1980) 27 Cal.3d 167, the court ruled discharge for refusal to participate in a gas price fixing scheme were sufficient. Plaintiff’s allegations are not analogous and fail to support malice or oppression within the meaning of Section 3294. Thus, Plaintiff’s Motion is denied.
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